

Court No. - 9

Case :- WRIT - C No. - 27923 of 2022

Petitioner :- Executive Engineer , Electricity Distribution

Respondent :- Smt. Sunita Devi And Another

Counsel for Petitioner :- Alok Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Prakash Padia,J.

Heard learned counsel for the petitioner.

The petitioner has preferred the present writ petition challenging the order dated 02.05.2022 passed by Permanent Lok Adalat in P.L.A. Case No.99 of 2019.

It is argued by Sri Alok Mishra, learned counsel for the petitioner that order passed by the Permanent Lok Adalat allowing the claim of claimant/respondent No.1 is penitently illegal because before approaching Permanent Lok Adalat, first of all the respondent No.1 should approach the authorities for adjustment or reduction of the electricity bill in view of the provisions contained under the Electricity Act, 2003 as well as Electricity Supply Code, 2005.

Matter requires consideration.

Learned Standing Counsel accreted notice on behalf of respondent No.2.

Issue notice to respondent No.1, returnable at an early date.

All the respondents are granted six weeks time to file counter affidavit.

Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after exchange of affidavits.

Order Date :- 21.9.2022/saqlain